

		Now that the Court has determined that Defendants are a partially prevailing party, the Court must determine the amount of fees to award pursuant to the lodestar method. Defendants requests \$22,836.50 in attorneys' fees and \$123.54 in costs. The Court finds the \$123.54 in costs reasonable and the Court GRANTS the motion as to the \$123.54 in costs. However, the Court finds that Defendants not entitled to the full \$22,836.50 in attorneys' fees requested as Defendants were only partially the prevailing party. The Court will reduce the fees associated with "[r]esearch and analysis of anti-SLAPP law as applied to Plaintiff's claims" and "[d]rafting, filing and serving the anti SLAPP Motion and supporting documents" by 1/3 since Defendants succeeded in striking two of the three causes of action. Defendants failed to provide a sufficiently detailed breakdown of the work performed for the fees incurred and therefore the Court is unable to decipher and analyze whether the time expended or the monetary charge being made for the time expended are reasonable under the circumstances. For example, Defendants provided a blocked-bill of 25.2 hours by Brian Bauer and 3.3 hours by Nicholas Shantar for "Drafting, filing and serving the anti SLAPP Motion and supporting documents." As such, the fees will be reduced by 9.3 at \$495/hour (\$4,603.50) and 1.1 at \$475/hour (\$522.50) for a total reduction of \$5,126. The motion for attorney fees is therefore GRANTED in the amount of \$17,710.50 in attorney fees and \$123.54 in costs. <i>Defendants to give notice.</i>
105	Clicktide Digital Corporation vs. VPP Technologies, Inc, 25-01521849	<i>Off-calendar.</i>
106	Harris vs. City of Irvine, 25-01529084	Respondents City of Irvine, Irvine Police Department, Kailene Loza, in her official capacity as Lead Records Specialist, and Adrianna Medina, in her official capacity as Program Specialist ("Respondents") demur to the Petition for Writ of Mandate filed by petitioner Sonia Patricia Harris ("Petitioner") for failure to state a cause of action. As an initial matter, the Court notes that Respondents' moving papers were served on Petitioner by electronic service only. As a pro se litigant, papers must be served on Petitioner by mail unless Petitioner affirmatively agrees otherwise. Because Petitioner has filed a timely, substantive opposition to the moving papers, the Court finds any

deficiencies with service waived. However, the failure to properly serve papers in the future may result in a motion being denied or taken off calendar, as appropriate.

Further, the Court notes that Petitioner's opposition is not accompanied by a proof of service. Petitioner is advised that all future filings requiring service should be accompanied by a proof of service, when required.

First Cause of Action for Writ of Mandate

Respondents argue this cause of action fails because the only records sought that have not been produced are exempt investigatory files related to a domestic violence incident, which is shown on the face of the Petition and exhibits attached to Respondents' Request for Judicial Notice (RJN).

Petitioner alleges that she submitted a California Public Records Act (CPRA) request on September 24, 2025. In an October 16, 2025 response, Respondent Loza claimed that certain requested records require a subpoena and the statutory deadline for production passed with no full production made. Further, Petitioner alleges that Respondent Loza represented on November 5 that the date range of the records searched was from June 21-24 but Petitioner was seeking records from June 23-30 and this shows that Respondents failed to conduct a proper search.

The CPRA "does not require the disclosure of records of complaints to, or investigations conducted by, or records of intelligence information or security procedures of, the office of the Attorney General and the Department of Justice, the Office of Emergency Services and any state or local police agency, or any investigatory or security files compiled by any other state or local police agency, or any investigatory or security files compiled by any other state or local agency for correctional, law enforcement, or licensing purposes." (Gov. Code, § 7923.600(a).)

Respondents' argument that all withheld records fall within the exemption under section 7923.600 depends upon issues beyond the face of the Petition and the documents submitted in the RJN. For instance, the exemption requires a showing that the withheld records relate to an investigation conducted by one of the enumerated entities, which requires consideration of evidence beyond the Petition. Further, Respondents have shown that a misdemeanor complaint has been filed against Petitioner as the result of an April 19, 2025 incident but whether that incident relates to the incident at Petitioner's residence for which the records are sought also requires consideration of evidence beyond the Petition. Therefore, Respondents' attack of the first cause of action fails and the Demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action for Failure to Provide Timely Determination

Respondents argue this cause of action fails because Petitioner concedes that a timely initial determination was provided on October 16 and, in any event, a comprehensive response was provided on November 28 before the Petition was filed, rendering the allegations moot.

Petitioner alleges that Respondents violated section 7922.535 of the CPRA by failing to provide a determination within 10 days. However, section 7922.535(b) provides that the 10 day period may be extended by up to 14 days. Exhibit 4 to the Petition shows that notice of a 14-day extension was provided to Petitioner on October 3. This exhibit shows that Respondents could not have violated the CPRA by failing to provide a determination within 10 days of the request. Thus, the allegations fail to state a viable cause of action and the Demurrer to the second cause of action is SUSTAINED with 20 days leave to amend.

Third Cause of Action for Failure to Provide Withholding Index

Respondents contend this cause of action fails because the CPRA does not require the creation of a withholding index. Petitioner does not dispute that Respondents have no obligation to create an inventory of potentially responsive records as a matter of course. Thus, this cause of action, which alleges that Respondents have violated the CPRA by failing to provide a withholding index which identifies each record and cites to specific exemptions with an explanation as to how the exemptions apply, fails to state sufficient facts and the Demurrer to the third cause of action is SUSTAINED with 20 days leave to amend.

Fourth Cause of Action for Failure to Conduct a Reasonable Search

Respondents argue the exhibits attached to the Petition demonstrate that multiple searches in good faith were conducted with the corrected dates provided by Petitioner.

Petitioner alleges that her initial request sent on September 24 identified an appearance in family court by Officer Lerma on June 23 and a CVS encounter in the week of June 21. However, her September 27 amended request corrected those dates to June 30 and the week of June 23-30, respectively. Despite her amended request and multiple corrections, Petitioner alleges that Respondents repeatedly searched the incorrect date ranges.

Exhibits 6 and 19 to the Petition show that records relating to Officer Lerma's June 30 appearance in family court were produced to Petitioner in response to the request. Further, exhibit 19 shows that the City performed a search for records

with the revised date range (the week of June 23) and the search returned zero results. These exhibits belie Petitioner's allegations that Respondents continued to use the incorrect dates in their search for records. Thus, this cause of action fails and the Demurrer to the fourth cause of action is SUSTAINED with 20 days leave to amend.

Fifth Cause of Action for Unlawful Use of Non-Existence "Subpoena Requirement"

Respondents argue they did not impose any subpoena requirement as a reason for withholding records and the records were instead withheld as exempt investigatory files.

The Petition alleges that, contrary to the CPRA, Respondents claimed that Petitioner must seek a subpoena, this was a legal misrepresentation, and Respondents' withholding is improper. While the exhibits attached to the Petition show that Petitioner was advised that a subpoena would be required for obtaining the requested audio, video recordings, and/or 911 phone call recordings, exhibit 19 makes it clear that these records were ultimately withheld pursuant to Respondents' claim of the investigatory exemption. Because no documents were withheld pursuant to any unlawful subpoena requirement, this cause of action fails and the Demurrer to the fifth cause of action is SUSTAINED with 20 days leave to amend.

Sixth Cause of Action for Declaratory Relief

Respondents argue this cause of action fails because the claim has fully matured, Petitioner's various causes of action show that she has adequate legal remedies, and the cause of action is unnecessary and duplicative.

Petitioner's declaratory relief cause of action does not fail merely because she has a fully matured claim under the CPRA, as "the CPRA authorizes declaratory relief in at least some circumstances in which an agency already has disclosed all nonexempt records responsive to a records request." (*City of Gilroy v. Superior Court* (2026) 19 Cal.5th 38, 54.) This includes "situations in which an agency is reasonably likely to repeat past conduct that allegedly violates the CPRA in response to future records requests." (*Ibid.*) Further, the fact that Petitioner has other legal remedies does not foreclose a declaratory relief cause of action. (*Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 364 ["'The mere circumstance that another remedy is available is an insufficient ground for refusing declaratory relief, and doubts regarding the propriety of an action for declaratory relief . . . generally are resolved in favor of granting relief.'"]). Therefore, Respondents' arguments fail and the Demurrer to the sixth cause of action is OVERRULED.

		<i>Seventh Cause of Action for Injunctive Relief</i> Respondents contend this cause of action fails because it is redundant, given that the CPRA explicitly authorizes a petitioner to seek a writ of mandate to compel the inspection of public records, and it is uncertain. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Here, the Petition is not incomprehensible. Thus, the Demurrer based on uncertainty is OVERRULED. However, “[i]njunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief.” (<i>Allen v. City of Sacramento</i> (2015) 234 Cal.App.4th 41, 65.) Thus, Petitioner’s seventh cause of action is improper. Rather than asserting a separate cause of action for injunctive relief, Petitioner may obtain the requested injunction if she prevails on her first cause of action for violation of the CPRA. Thus, the Demurrer to the seventh cause of action is SUSTAINED without leave to amend. <i>Eighth Cause of Action for Statutory Penalties and Sanctions</i> Respondents argue this cause of action misstates the remedies available under Government Code section 7923.15, which does not provide for a separate cause of action. Respondents further argue that Petitioner is not entitled to recover attorney’s fees as a pro se litigant. Section 7923.15 provides that a requester who prevails in litigation shall be awarded costs and reasonable attorney’s fees. While Petitioner may be entitled to an award of costs if she prevails in this litigation, this is a remedy and not a separate cause of action. Thus, the Demurrer to the eighth cause of action is SUSTAINED without leave to amend. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
107	Holl vs. ADK Bancorp, Inc., 22-01257212	<i>Call Clerk for Tentative Ruling</i>
108	Falevich vs. Hyundai Motor America, 26-01564960	Defendant Hyundai Motor America (“Defendant”) moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff’s Owner’s Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiffs Vladislav Falevich and Olga Falevich (“Plaintiffs”) oppose the motion.